

'Towards a Global Pact for the Environment': International environmental law's factual, technical and (unmentionable) normative gaps

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A key feature of the 2018 United Nations (UN) General Assembly Resolution 'Towards a Global Pact for the Environment' is the preparation of a technical and evidence-based report by the UN Secretary-General that identifies and assesses possible gaps in international environmental law (IEL) and environment-related instruments with a view to strengthening their implementation. The gap report will be considered by an ad hoc open-ended working group to discuss options to address the possible gaps. In this article, we reflect on the likely impact of this initial gap identification and analysis phase of the intergovernmental process. We are specifically concerned with the notion and the nature of 'gaps' in the context of the draft Global Pact, the Resolution and more generally in IEL, and will explore whether the concept of 'gaps' has meaningful value and whether such gaps are factual, technical or normative in nature. While we believe an analysis of the strengths and weaknesses of IEL should be welcomed, we are not entirely convinced, however, that a gap analysis in the form and fashion currently proposed is the most effective or useful way to go about this.

1 | INTRODUCTION

A key feature of the 2018 United Nations General Assembly (UNGA) Resolution 'Towards a Global Pact for the Environment'¹ – the history, content and purpose of which is described in greater detail here² and elsewhere in this special issue – is the preparation of a 'technical and evidence-based' report by the United Nations (UN) Secretary-General 'that identifies and assesses possible *gaps in international environmental law* and environment-related instruments with a view to strengthening their implementation'.³ Such a report is to be considered by the ad hoc open-ended working group established under the Resolution, to

'discuss possible options to address possible gaps ... and, if deemed necessary, the scope, parameters and feasibility of an international instrument'.⁴ The gap assessment is a critical first phase in the formal UN process that may or may not lead to the eventual adoption of 'an international instrument'. If adopted, informed as such an adoption presumably would be by the gap analysis, the ambitions of the Pact's earliest proponents might very well be fulfilled in due course, namely: (i) to have a globally binding international environmental law (IEL) instrument that (ii) entrenches all the major principles of IEL in one document; whilst also (iii) developing the law progressively to provide a globally recognized right to live in an ecologically sound environment, with associated procedural environmental rights.⁵

The process of conducting an *ex ante* gap analysis seems to be gaining traction in global environmental politics, with the future

¹UNGA 'Towards a Global Pact for the Environment' UN Doc A/RES/72/277 (10 May 2018).

²P Thieffrey, 'The Proposed Global Pact for the Environment and European Law' (2018) 27 *European Energy and Environmental Law Review* 182; L Kotzé and D French, 'A Critique of the Global Pact for the Environment: A Stillborn Initiative or the Foundation for *Lex Anthropocena*?' (2018) 18 *International Environmental Agreements: Politics, Law and Economics* 811.

³UNGA (n 1) para 1 (emphasis added).

⁴*Ibid* para 2.

⁵Le Club des Juristes, 'White Paper: Toward a Global Pact for the Environment' (Le Club des Juristes 2017).

development of the Pact and possibly of other future multilateral environmental agreements (MEAs) hinging on such a gap analysis being conducted well before the negotiation process commences. The norm-creation process in the global environmental governance domain is not entirely unfamiliar with the need to identify (and consequently to fill) perceived gaps in IEL. Even as far back as 1995, the International Union for the Conservation of Nature (IUCN) Draft International Covenant on Environment and Development (like the Global Pact) was intended to become 'an international legal instrument of general scope, addressing the whole field of environment and development';⁶ in other words, a document that would 'fill in gaps in international law, by placing in a global context principles which only appear in certain places and by adding matters which are of fundamental importance but which are not in any universal treaty'.⁷

Building on recent critique of the Global Pact's draft text, in the present article we reflect on the likely impact of this initial gap identification and analysis phase of the UN-driven intergovernmental process.⁸ Importantly, conscious of the fact that the release of the gap report coincided with the acceptance of this article for publication,⁹ it is not the purpose of this article to consider possible gaps in the draft Global Pact; or in a 'technical' manner the many potential gaps in IEL and the manner in which the envisaged gap report might recommend how they could or should be 'assessed';¹⁰ or even how the implementation of IEL instruments could be 'strengthened' in the light of prevailing gaps. While these are all pertinent and interesting points of analysis, we are more concerned with the *notion* and the *nature* of 'gaps' in the specific context of the Global Pact, and more generally in IEL, which we aim to interrogate in this article. In doing so, we will raise a not inconsiderable number of generic questions that are relevant for the broader field of IEL, the answers to which are not immediately forthcoming.

The notion of a 'gap' in IEL – as in most areas of international law – is an idea which, though easily understood at a linguistic level, raises fundamental complexities conceptually. We will set to one side for the moment the fact that the Resolution refers to 'possible gaps' as a necessary textual ambiguity to ensure as broad an endorsement as possible, though it does highlight the invariably contestable nature of the objectivity of a gap, which we will consider below. Rather, we start from the premise that as the Resolution refers to gaps in IEL, it is

appropriate to consider this matter from a legal perspective. But saying this is a legal question does not get us too far, as the notion of a gap is open-ended and could – and probably does – embrace a wide range of possible types of gaps. We identify three types for our present purposes (there may be others): factual, technical and normative (rules and principles) gaps. There are, of course, significant overlaps among these different types of gaps – specifically, that a factual gap might invariably lead one to the conclusion of a concurrent and synergistic normative gap – but each is also quite distinct. The wording of the Resolution makes it possible for each type of gap sensibly to be included in a gap analysis, though it is perhaps less likely that they will be strictly categorized in this way in the light of the intergovernmental audience receiving the report.

In reflecting on the notion and nature of the three types of gaps in IEL that we have identified, the article will explore whether the concept of 'gaps' has significant value, whether such gaps are factual, technical or normative in nature, and what in fact such terms mean. The article will suggest that the wording of the UNGA Resolution on this matter is simultaneously progressive and conceptually incoherent, the connection of the identification of gaps with 'their implementation' presumably referring to IEL and environment-related instruments and not to the gaps themselves. We further suggest that if the current business-as-usual content of the draft Pact is anything to go by,¹¹ even if the gap report does identify gaps in IEL, they will not include – if for no other reason than political acceptability – those necessary to future-proof a Global Pact (on the assumption that the report is not of a defensive ontology to allow the working group to foreclose simply the need for a Global Pact,¹² but rather to feed into potential future intergovernmental negotiations). The normative 'gaps' will most probably not be of the more radical, creative type that are beginning to find expression in certain areas of environmental law and policy (e.g. the rights of nature),¹³ but as yet remain outside the primary discourse and principal binding instruments of IEL. Just like the famous 1960 English obscenity trial of the novel *Lady Chatterley's Lover*, what was considered previously as radical, extreme or in that case *obscene*, is now an accepted part of the canon. And we suggest that some of those normative 'gaps' which we identify, though presently perceived as unmentionable in mainstream debate,¹⁴ might very well also become acceptable, and accepted, in future. In fact, they need to be so, both for the long-term integrity of IEL and, more importantly, for long-term Earth system integrity.

⁶See IUCN, 'Foreword to the First Edition, IUCN Draft International Covenant on Environment and Development' (IUCN Environmental Policy and Law Paper No 31 Rev 3 of 2010) xix <<https://portals.iucn.org/library/sites/library/files/documents/EPLP-031-rev3.pdf>>.

⁷*Ibid* xviii.

⁸See also S Biniarz, 'The UNGA Resolution on a "Global Pact for the Environment": A Chance to Put the Horse Before the Cart' (2019) 28 Review of European, Comparative and International Environmental Law.

⁹The gap report was published between the first and final submission of this article. As the intention of this article was never to provide a summary *per se* of the report, but rather to focus on exploring the issue of gaps in IEL, no further mention is made of it; other than to say that on reading the report, the present authors stand by their conclusion in this article, namely: the report says very little that is new, groundbreaking or unsettling. See UN Secretary-General, 'Gaps in International Environmental Law and Environment-related Instruments: Towards a Global Pact for the Environment' UN Doc A/73/419 (30 November 2018).

¹⁰The resolution is very clear that the report should 'identif[y] and assess ...' (UNGA (n 1) para 1), but that it is for the working group to 'discuss possible options to address possible gaps' (*ibid* para 2).

¹¹Kotzé and French (n 2) 811–838.

¹²The working group is to 'discuss possible options ... as appropriate, and, if deemed necessary, the scope, parameters and feasibility of an international instrument, with a view to making recommendations'. UNGA (n 1) para 2 (emphasis added).

¹³See, among others, L Kotzé and P Villavicencio Calzadilla, 'Somewhere between Rhetoric and Reality: Environmental Constitutionalism and the Rights of Nature in Ecuador' (2017) 6 Transnational Environmental Law 401; P Villavicencio Calzadilla and L Kotzé, 'Living in Harmony with Nature? A Critical Appraisal of the Rights of Mother Earth in Bolivia' (2018) 7 Transnational Environmental Law 397.

¹⁴Famously summarized at the trial by the prosecution counsel as 'Is it a book would you have lying around your own house? Is it a book that you would even wish you wife or your servants to read?' On the social impact of the trial, see G Robertson, 'The Trial of Lady Chatterley's Lover' (22 October 2010) <<https://www.theguardian.com/books/2010/oct/22/dh-lawrence-lady-chatterley-trial>>.

2 | FACTUAL GAPS

Factual gaps are gaps in the coverage of IEL on matters that arguably should be regulated. In many ways, identifying a factual gap is the first stage of ascertaining whether there is a normative gap, though the two are distinct; one might be prepared to accept a problem, but whether it requires a legal response (as compared to a technological solution, or simply changes in market or consumer preferences) is a secondary and altogether very different consideration. The present debate on tackling marine plastic pollution would seem to be a good example of a factual gap, if only because there is widespread if not universal agreement that *something must be done*;¹⁵ but whether that *something* must include a legal response is perhaps more arguable. Of course, there are already established basic rules on marine pollution, which provide a broad, outer framework of general rules.¹⁶ But is the existence of certain generalized framework rules sufficient to say that there is still a gap, be that factual or normative? Certainly, there is a general view that the most effective form of international environmental regulation is the adoption of detailed rules, occurring within specific treaty regimes. General principles and overarching norms are rarely regarded as an adequate substitute, although they could usefully provide an enabling framework for further regulation. An example of such an approach bearing fruit was the rapid adoption of highly detailed rules on protecting the ozone layer, a regulatory concern in which IEL has played a decisive role in addressing effectively.¹⁷ When compared with the ozone regime, it would not seem difficult to argue that there is a gap in the current law as regards marine plastic pollution. (Although admittedly, what also assisted with tackling the ozone issue were changes in producer behaviour, prompted in part by law, but also by the economics of greater consumer information). We will return to this example below as regards normative gaps.

Nevertheless, not all issues have secured a sufficient global consensus to say that there is a factual gap and as a consequence, a pressing need to regulate these concerns through detailed IEL regimes. Take for instance environmental space debris, animal welfare and hydraulic fracturing. While many scholars regard these as being critical concerns warranting global regulation in their own right,¹⁸ there does not (yet) seem to be sufficient political consensus on whether these are 'environmental problems' requiring international regulation, or even if they are, the nature and form that such international regulation

should take. And what of areas that are only partially regulated such as genetically modified organisms, illegal logging and the stabilization of greenhouse gases at 1.5°C above pre-industrial levels?¹⁹ Are these factual gaps or 'covered' matters with partial regulation as a result of political contention? As noted above, the concept of a gap might assume an objectivity, but this is invariably false: being able to ascertain factual gaps is inherently a selective and therefore *subjective* exercise, however conscientiously undertaken. Moreover, what of gaps that we do not yet appreciate – the 'known unknowns' and 'unknown unknowns' which former United States Secretary of Defense, Donald Rumsfeld, once remarked upon;²⁰ in this case, the damage that we are doing to the Earth system that we either do not fully appreciate or that we do not yet realize we are causing. They are, by definition, factual gaps and yet they are of an order fundamentally different from the other factual gaps identified above. One might tentatively also refer here to those lesser well-known, and therefore publicly far less prevalent, planetary boundaries, such as biogeochemical (nitrogen and phosphorus) flows to the biosphere and oceans;²¹ the damage to which, we are told, are hugely destructive to the global environment. And yet our understanding of these matters is arguably not as detailed as it is now, for instance, on climate change. If there is a normative gap, it is preceded very notably by a factual one; we simply either do not appreciate the risks sufficiently or we are not yet prepared politically to act accordingly.

3 | TECHNICAL GAPS

The second type of gap is technical, which we interpret here with reference to the Resolution's clear link in its language to 'strengthening [their] implementation'. Noting the comment already made that the implementation here must textually refer to IEL and environment-related instruments, and not to the gaps themselves, it nevertheless raises a number of important queries about the purpose of identifying the gaps and then as the Resolution says, for the ad hoc open-ended working group to 'discuss possible options to address possible gaps'. Technical gaps therefore relate to implementation as broadly understood; in other words, how to make IEL more effective. As the Russian Federation argued in the UNGA debate prior to the adoption of the Resolution, the focus should be on financing and implementation, rather than on establishing new instruments.²² There is undoubtedly

¹⁵The reality is that '[P]lastic pollution has received little attention in terms of international agreements – a notable contrast to carbon emissions and other global pollutants, such as chlorofluorocarbons (CFCs), and Persistent Organic Pollutants (POPs).' S Borrelle et al, 'Why We Need an International Agreement on Marine Plastic Pollution' (2017) 114 Proceedings of the National Academy of Science of the United States of America 1, 2.

¹⁶See, e.g., P Sands and J Peel, *Principles of International Environmental Law* (3rd edn, Cambridge University Press 2012) 342–447.

¹⁷See, among others, P Le Prestre, J Reid and T Morehouse (eds), *Protecting the Ozone Layer: Lessons, Models and Prospects* (Springer 1998); and more recently A Gillespie, *Climate Change, Ozone Depletion and Air Pollution: Legal Commentaries with Policy and Science Considerations* (Martinus Nijhoff 2006).

¹⁸C Christol, *The Modern International Law of Outer Space* (Pergamon Press 1984); A Peters, 'Global Animal Law: What It Is and Why We Need It' (2016) 5 Transnational Environmental Law 9; J Ray, 'Shale Gas: Evolving Global Issues for the Environment, Regulation, and Energy Security' (2013) 2 LSU Journal of Energy Law and Resources 75.

¹⁹Of course, what is un- or under-regulated is also often related to those missing voices in the discourse and polity, on which see L Collins and D French, 'International Environmental Law Scholarship' in L Rajamani and J Peel (eds), *Oxford Handbook of International Environmental Law* (2nd edn, Oxford University Press fc).

²⁰Wikipedia, 'There are Known Knowns' (2018) <https://en.wikipedia.org/wiki/There_are_known_knowns>.

²¹On the nine planetary boundaries generally, see Stockholm Resilience Centre, 'The Nine Planetary Boundaries' <<https://www.stockholmresilience.org/research/planetary-boundaries/planetary-boundaries/about-the-research/the-nine-planetary-boundaries.html>>; and J Rockström et al, 'Planetary Boundaries: Exploring the Safe Operating Space for Humanity' (2009) 14 Ecology and Society 1.

²²AM Lebada, 'UNGA Adopts Resolution on Global Environment Pact' (24 May 2018) <<http://sdg.iisd.org/news/unga-adopts-resolution-on-global-environment-pact/>>.

a gap between the obligations States assume and full implementation; and there is an even larger gap between those obligations, the present state of the environment and the desired level of protection that is critically required. The fact that the Resolution expressly mentions 'implementation' would thus firmly place these conversations within the ambit of the ad hoc open-ended working group's inquiry.

Politically, the issue of implementation goes to the heart of the IEL debate: do we really need more norms or more instruments that some view as leading to treaty congestion?²³ Moreover, would a focus on normative expansion not exacerbate the 'fragmentation' of global environmental law and governance regimes, thus counterproductively undermining a key concern the drafters imagined the Global Pact must tackle, that is, 'strengthen the coherence of global governance of the environment, currently characterized by the fragmentation of international institutions and the multiplication of international environmental norms both technical and sectoral'?²⁴ Should we not focus on *better* implementation instead? Seen in this light therefore, the wording of the Resolution is a continuation of a long-standing debate.²⁵ It also has strong North–South dimensions, when reflecting the persistent relevance of common but differentiated responsibilities and respective capabilities in IEL.²⁶

There is also a second (related, but discrete) aspect to the notion of technical gaps. That is, the existence of gaps in the technical, scientific and socio-economic data which underpin the functioning of such regimes, and the full understanding of environmental challenges to allow for more strategic, focused and sufficiently accommodative norm development (and subsequent refinement), as well as for better implementation eventually. Are these gaps also within the scope of the Resolution? They certainly connect to the core mandate of seeking to strengthen implementation and would fit within the general tenor of many States' concerns that (regardless of the value of a new instrument) implementation remains a particular issue within IEL.²⁷ But just as in the discussion of more traditional implementation gaps in the paragraph above, identifying such gaps is one thing, while assessing them is quite another. To mention but one example, this would be the case for gaps arising from technology transfer.²⁸ Will a gap report be able to move a debate that has frustrated negotiators across numerous regimes, spanning numerous decades? Most likely not. Is there a danger that, intentionally or not, the gap report will be caught in, or even

worse, seek to prejudice, high-level politics, where the only results are empty platitudes? Hopefully not. But even if the report touches on those matters that are generally *agreed* as being ongoing political *disagreements* (i.e. 'gaps' in need of further political elaboration), such as technology transfer at the global level, that will still take more political will and considerable resources to correct than has so far proved possible. There remains a real risk of limited success based on past evidence.

4 | NORMATIVE GAPS IN RELATION TO RULES AND PRINCIPLES

The third type of gap is normative in nature. These gaps concern omitted – as in some way non-existent – rules and principles. It would seem inevitable that a gap report would include such gaps as its principal purpose if, as noted above, it is not to foreclose the possibility of the negotiation and adoption of the Global Pact, but instead to inform the next stages in the intergovernmental process, possibly towards the adoption of a legally binding Global Pact. Nevertheless, ascertaining a normative gap possibly is as difficult to conceptualize as any other type of gap. To raise only some issues: How does one go about identifying normative gaps in IEL? What is the methodology? Simply to ask whether there are rules which the international community needs, but does not yet have, seems innately subjective. To pick up again the example of marine plastic pollution we raised above: is there a need for new rules? There are some generalized norms which might be used, but have not as yet been expressly clarified to tackle the issue specifically.²⁹ Is that a normative gap in IEL? And when discussing IEL rules, is it appropriate to talk about gaps where treaty-based rules actually exist but are of a regional nature, so that there is no global coverage? Or where there is an MEA, but it includes provisions that a State cannot accept on the basis of their being too progressive, or insufficiently progressive? Again, is that a normative gap in IEL? Are gaps containing soft law provisions (yet to be translated into binding treaty law) still gaps because they apply to an area that binding IEL does not regulate? In other words, does the fact of their being non-binding soft law result in a normative gap? And what about those documents that exist in the legal–political space of normative desiderata? Examples might be the provisionally adopted 2018 International Law Commission's (ILC) first reading draft guidelines on the protection of the atmosphere³⁰ and the 2006 ILC draft principles on the allocation of loss in the case of transboundary harm arising out of hazardous activities,³¹ recognizing both the iterative status such ILC documents can often have for a prolonged period of time, and the

²³Identified as early as 1993 by E Brown Weiss, 'International Environmental Law: Contemporary Issues and the Emergence of a New World Order' (1993) 81 Georgetown Law Journal 675.

²⁴Le Club des Juristes (n 5) 8.

²⁵L Kotzé, 'Fragmentation Revisited in the Context of Global Environmental Law and Governance' (2014) 131 South African Law Journal 548.

²⁶EM Basse and S Gaines, 'Common but Differentiated Responsibilities and Respective Capabilities' as Part of the Post-2012 Climate Regime' (2010) 2 Nordic Environmental Law Journal 189; D French, 'Developing States and International Environmental Law: The Importance of Differentiated Responsibilities' (2000) 49 International and Comparative Law Quarterly 35.

²⁷D Bodansky, 'Implementation of International Environmental Law' (2011) 54 Japanese Yearbook of International Law 62.

²⁸C Alberts, 'Technology Transfer and its Role in International Environmental Law: A Structural Dilemma' (1992) 6 Harvard Journal of Law and Technology 63.

²⁹See, in particular, the general rules and principles of Part XII (protection and preservation of the marine environment) of United Nations Convention on the Law of the Sea (adopted 10 December 1982, entered into force 16 November 1994) 1833 UNTS 3. See, for a comprehensive discussion, E Kirk, 'Marine Plastics: Fragmentation, Effectiveness and Legitimacy in International Lawmaking' (2018) 27 Review of European, Comparative and International Environmental Law 222; K Raubenheimer, A McIlgorm and N Oral, 'Towards an Improved International Framework to Govern the Life Cycle of Plastics' (2018) 27 Review of European, Comparative and International Environmental Law 210.

³⁰Report of the International Law Commission on its 80th Session' UN Doc A/73/10 (2018).

³¹Report of the International Law Commission on its 58th Session' UN Doc A/61/10 (2006).

contested mix of codification and progressive development that they sometimes contain.³² Is their normative ambiguity a gap in IEL? And what of customary IEL rules? How should one interpret the International Court of Justice's (ICJ) determination in *Pulp Mills on the River Uruguay*, that whilst undertaking an environmental impact assessment in the face of the risk of transboundary harm is obligatory under IEL (was there a gap before the judgment one must even ask?) more specifically, 'general international law [does not] specify the scope and content of an environmental impact assessment'.³³ Thus, in terms of substance, is such a view a deference to national law or a gap in IEL?

Moreover, as IEL remains on the whole voluntarist in nature, when viewed at the level of individual States, a gap for one State (because it is not party to a treaty or is a persistent objector to a rule of customary international law) is not the same for another. But that of course is not how 'gaps' in international law work; one usually talks of gaps in a system, not of differences in individual obligations. On the other hand, we might accept that variations in the extent to which regional legal regimes cover IEL could constitute gaps (some regions for instance have not yet adopted rules on access to environmental information and environmental democracy);³⁴ but variations between State participation in MEAs cannot be described as 'gaps'; they are something for States to work towards. Curiously, then, the UNGA Resolution has done more than most documents to reinforce the idea of IEL as a system, recognizing at a high level the very possibility of gaps, the implication being the existence of a putative whole in which normative omissions exist. Whether the report it has asked for can identify normative gaps in that system is less clear. One begins to realize the nuances in what would appear to be, on the face of it, a rather simple question. What clearly emerges as an interim conclusion is that the more one reflects on these questions, the less clear they become.

Identifying 'gaps' in the draft Pact, which arose from a non-UN process, is not the mandate for the UN Secretary General's gap report, which is noticeably disconnected from the draft Global Pact and referenced only obliquely in the Resolution.³⁵ In other words, the gap report is not intended to be a corrective for a 'first-version' Global Pact. But while the gap analysis does not focus on the text of the draft Pact, the Pact in its present form is not entirely excluded from the gap analysis process; if only as a matter of its being

implicated in the design and content of whatever future vision States would like to have of IEL. To this end, if the Global Pact is the first iteration of what could become a universally binding instrument of IEL which must, in the words of its drafters, 'enshrine the founding principles of environmental law',³⁶ then one must ask whether the current proposed law is adequate and whether it contains normative 'gaps'. We focus on only three issues for our present purposes.

First, setting aside for the moment the issue of whether the draft Pact ambitiously manages to provide the foundation for *Lex Anthropocenae* (a matter we focus on below), generally speaking does the type of existing – or 'founding' and legally binding – norms it reproduces set the desired standard of behaviour? Is 'harm' sufficiently well-defined? Does the norm provide too many exceptions or is the differentiation it permits for different types of States (developed versus developing) too (in)flexible? Is it an obligation of conduct or of result? Of the many rules and principles included in the draft Global Pact, there is a general sense that they are only broadly scoped, and as we and others have argued, often insufficiently.³⁷ One example is the draft Pact's treatment of equity. Draft Article 4 sets out the duty to observe and ensure intergenerational equity, but it curiously does not provide for the critical issue of intragenerational equity at a time when there are clear North–South inequalities between people.³⁸ The issue of intra-species equity is also ignored, which is surprising considering that many pervasive socio-ecological injustices abound not only between human beings of this and the next generation, but also between human and non-human entities of this and the next generation. Other equity-related principles such as the equitable use of shared or common natural resources, and common responsibility for collective interests and goods including common areas, common heritage and common concern, have also not been included.³⁹ The draft Pact's view of equity is therefore decidedly narrow and exclusionary, and it is far from being comprehensive in any meaningful sense. Other examples are those rules/principles which have seen significant judicial elaboration over the past two decades such as the prevention of harm, the precautionary principle, environmental impact assessment and the remediation of environmental harm. They are at present only cursorily sketched in the draft Global Pact.⁴⁰ Could we say that these principles are gaps if they are merely regurgitated in their present narrowly circumscribed form? Such omissions from the text may be gaps in a linguistic sense (i.e. as having not been fully fleshed out), but they are arguably neither gaps in either the common usage of that term (because they are included) or indeed normatively (they simply do not quite scope the

³²These principles concern primarily how States *should* (the term used in the ILC draft principles) ensure the allocation of loss within *their* territory. It is debatable how far that is a matter of international law (in contradistinction to domestic (or private international) law), and, more specifically, how far public international law can – or has so far provided detailed rules necessary to – prescribe the result.

³³*Pulp Mills on the River Uruguay (Argentina v Uruguay)* [2010] ICJ Rep 14, 83.

³⁴These matters are regulated for example in the Aarhus Convention on Access to Information, Public Participation and Access to Justice in Environmental Matters (adopted 25 June 1998, entered into force 30 October 2001) 2161 UNTS 447 (1999) (Aarhus Convention), which is operative mostly in Europe, while the Escazú Agreement on Access to Information, Participation and Justice in Environmental Matters (adopted 4 March 2018, not yet in force) in Latin America and the Caribbean has opened for signature in September 2018 for Latin America and the Caribbean. No similar binding regional arrangements exist in Africa, for example. See W Scholtz and J Verschuuren (eds), *Regional Environmental Law: Transregional Comparative Lessons in Pursuit of Sustainable Development* (Edward Elgar 2015).

³⁵To be sure, the draft itself is not even mentioned. The preamble makes only a cursory reference to the high-level side event held on 19 September 2017 (led by France) titled 'Summit on a Global Pact for the Environment'.

³⁶Le Club des Juristes (n 5) 7.

³⁷Kotzé and French (n 2); S Biniaz, '10 Questions to Ask about the Proposed "Global Pact for the Environment"' (Sabin Center for Climate Change Law 2017) <<http://columbiacclimate.law.com/files/2017/08/Biniaz-2017-08-Global-Pact-for-the-Environment.pdf>>.

³⁸C Gonzales, 'Global Justice in the Anthropocene' in L Kotzé (ed), *Environmental Law and Governance for the Anthropocene* (Hart 2017) 219.

³⁹J Raith, 'The "Global Pact for the Environment": A New Instrument to Protect the Planet?' (2018) 15 Journal for European Environmental and Planning Law 3, 14.

⁴⁰Kotzé and French (n 2) 827–829.

rule as well as they could or should have). Simply put, though one might take issue with the selective drafting of the draft Global Pact – the reasons for which may be political and design-driven for reasons of space and ‘neatness’, or even perceived difficulties to capture fully the entirety of a rule – these are probably not gaps *per se*.

A second issue which is worth considering at this point is IEL’s continued use and misuse of rules and principles as key terms in a wider menagerie of concepts to describe both hard law (treaty and customary), soft law commitments and guidelines, decisions of MEA conferences of the parties, as well as policy-oriented actions. The literature on rules and principles is vast,⁴¹ and unnecessary to summarize here. But in relation to the concept of a normative gap, the difference in normative status becomes increasingly stark and perhaps of greater interest. When one talks of a normative gap, is one referring to binding law only or to a wider range of forms, including general principles, soft law texts and ideas *de lege ferenda*? Much will depend on one’s view of the international legal system, as to what constitutes law, and thus whether one can validly, from an ontological basis, identify ‘gaps’ in the law.⁴² There has been much discussion in international law as to whether it is a *closed* system (in which case it is impossible for gaps to exist in it) – largely premised around the *Lotus* presumption that what is not proscribed is permitted⁴³ – whether it is a *complete* system, which whilst admitting of *lacunae* also admits of methodological approaches to allow for their avoidance,⁴⁴ or whether, rather, international law should be viewed more as an *open* system, accepting that the law might simply be silent on certain matters. On this last point, it is what Bruno Simma, in his judicial role, once noted as ‘[t]he neutrality of international law ... [which] simply suggests that there are areas where international law has not yet come to regulate, or indeed, will never come to regulate’.⁴⁵

Much of the literature on the issue of gaps in international law has admittedly focused on the judicial response to such perceived gaps,⁴⁶ and yet a link invariably must exist between the (significant, but arguably narrow) role of judicial gap-filling and the systemic development of international law, more generally, through State practice and treaty negotiation. The specific purpose of this article

precludes a full analysis of this debate. Nevertheless, the nihilism inherent in the *Lotus* presumption induces us to adopt a general position that regardless of the jurisprudential debate on whether to perceive international law as either a complete or an open system, seeing the system as fully closed, must be – if only from an ethical perspective – manifestly incorrect. As Melling says:

*The utilisation of a ‘residual negative principle’ ... [referred to above as the Lotus presumption] ... to complete the system does a disservice to the development of international law as a coherent body of law ... where a gap in the law exists, the utilisation of a ‘residual negative principle’ does nothing to remedy the material gap in the law and thereby contributes nothing to the development of the law. It could be said that such an approach merely entrenches the gap and arguably obstructs the development of law.*⁴⁷

On a matter such as IEL (as in other areas of international law which require a global, communitarian effort, such as human rights), where the *erga omnes* nature of the interest is paramount, acceding to the view that what is not prohibited is, by law, permitted – if it were ever tenable⁴⁸ – is contemporaneously unsustainable as a meta-principle either to guide ‘neighbourly’ State behaviour or to prompt effective regulatory design. For environmental law, to accept the *Lotus* presumption would be to ignore the many challenges thrown up by a possible new geological epoch that is characterized by fundamental, continuing and wide-ranging Earth system changes. The Anthropocene arguably demands a level of normative ambition,⁴⁹ or a global environmental constitutional moment, similar to the one last seen with the creation of the United Nations in 1945 and the adoption of the Universal Declaration of Human Rights in 1948:

*The world saw a major transformative shift in governance after 1945 that led to the establishment of the UN and numerous other international organizations, along with far-reaching new international legal norms on human rights and economic cooperation. We need similar changes today, a ‘constitutional moment’ in world politics and global governance.*⁵⁰

It is in the light of this need for progressive development that we, third and finally, need to consider those rules and principles which have not yet been agreed by the international community.

⁴¹See, e.g., D Bodansky, *The Art and Craft of International Environmental Law* (Harvard University Press 2010); and U Beyerlin and T Maruhn, *International Environmental Law* (Hart 2011).

⁴²See generally G Melling, ‘Conceiving International Law’s Normative Order Beyond the “Residual Negative Principle”’ (2018) 87 *Nordic Journal of International Law* 466.

⁴³*SS Lotus (France v Turkey)* PCIJ Rep Series A No 10 (7 September 1927) 18–19, in particular ‘The rules of law binding upon states ... emanate from their own free will as expressed in conventions or by usages generally accepted as expressing principles of law ... Restrictions upon the independence of States cannot therefore be presumed’ (18). In relation to the Global Pact, see ‘Global Perspectives on a Global Pact for the Environment’ (contribution by D Bodansky) (19 September 2018) <<http://ccsi.columbia.edu/2018/09/19/global-perspectives-on-a-global-pact-for-the-environment/>>.

⁴⁴For instance, the capacity of international law to admit general principles of law derived from national legal systems (Statute of the International Court of Justice (adopted 26 June 1945, entered into force 24 October 1945) 33 UNTS 993 (1946) art 38(1)(d)).

⁴⁵*Accordance with International Law of the Unilateral Declaration of Independence in Respect of Kosovo* (Advisory Opinion) [2010] ICJ Rep 403, Declaration of Judge Simma, 481.

⁴⁶See, e.g., J Kammerhofer, ‘Gaps, the Nuclear Weapons Advisory Opinion and the Structure of International Legal Argument between Theory and Practice’ (2010) 80 *British Yearbook of International Law* 333.

⁴⁷Melling (n 42) 472.

⁴⁸D Guilfoyle, ‘SS Lotus (France v Turkey) (1927)’ in E Bjorge and C Miles (eds), *Landmark Cases in Public International Law* (Hart 2017) 108–109: ‘[R]ather than being the high water mark of old-fashioned positivism, in the *Lotus* case we may see instead a turning point. It displays an earnest attempt to revise the dominant theory of international law ... and construct a law not merely of coexistence but cooperation.’

⁴⁹L Kotzé, ‘The Anthropocene’s Global Environmental Constitutional Moment’ (2015) 25 *Yearbook of International Environmental Law* 24.

⁵⁰F Biermann et al, ‘Navigating the Anthropocene: Improving Earth System Governance’ (2012) 335 *Science* 1306, 1307.

These are similar to but distinct from the normative gaps discussed above. They are more aspirational and certainly *radical* in nature, reflecting a genesis that originates instead from other sources: jurisprudence, philosophical and ethical approaches to environmental care, alternatives to the mainstream, religious doctrine or simply new ideas. These are the 'unmentionable gaps' as they are not yet, or not ordinarily, part of the mainstream (international law) discourse – or, if included, invariably in a preambular manner. Some examples are the rights of nature, ecological democracy, Earth system governance and law, Earth system integrity, the principle of *in dubio pro natura* and the ecological rule of law, all of which have the potential to push for a radically different and more ambitious normative framework, to address the systemic challenges inherent in IEL and global environmental governance, and to increase the normative reach, power and impact of norms that must ultimately seek to counter the socio-economic-political-juridical system's neoliberal anthropocentrism and exploitation of the Earth system.⁵¹ Some of these already exist in domestic laws and even in non-binding international instruments such as the World Charter for Nature of 1982, and they have significant potential to form the basis of a new legal paradigm for the Anthropocene, or *Lex Anthropocenae*; the exact outlines and content of which are still unclear.⁵²

Importantly though, these radical provisions are not present in the draft Global Pact; a critical concern that, starting with the gap analysis, could be addressed in order to future-proof, as it were, the Global Pact (and indeed IEL) through the eventual incorporation of such radical and creative provisions. What would be the purpose of a gap report in this context? To strengthen and future-proof any new IEL instrument or merely to improve what already exists? We certainly consider that the Resolution, and the legal reform process that might follow its gap analysis, present the international community with an important opportunity to adopt such radical provisions in a globally binding instrument. But for this to happen, strategically, a gap report must validly include such discussion within its mandate of 'identif[y]ing ... possible gaps in international environmental law'. In other words, it must challenge States to rise above their own territorial and self-interested short-termist and anthropocentric considerations and instead to adopt an Earth system perspective that at once also offers a normatively ambitious and radically different legal paradigm for the Anthropocene. Politically, of course, such reports rarely do this; they are simply not given the scope. As this is a UN Secretary-General report, it is independently drafted but perhaps less capable of being as substantively radical as, for instance, a UN Special Rapporteur's report. Indeed, the explicit reference to the gap report's being 'technical and evidence-based' would seem to have specifically circumscribed any approach other than a limited analysis.

To the extent that the draft Global Pact could be an indication of what we might expect a future binding instrument of IEL to look like, informed as such a future instrument will also presumably be by the gap analysis, there is considerable reason to believe that future reform processes of IEL and possibly the gap report that must initiate such reforms will be equally unambitious. After all, the Pact was drafted outside of the formal UN processes by a Group of Experts⁵³ which had considerable freedom of imagination and creativity and was essentially unconstrained by the stifling limits and limitations presented by State sovereignty, the neoliberal economic growth agenda and the many pitfalls of *realpolitik*, now ever more evident in a world characterized by post-truth politics, extremist populism, eco-crisis denialism, radical anti-rationalism, and a rejection of rational science and the rule of law.⁵⁴ Not even this Group of Experts managed to push the envelope by being innovative and normatively ambitious. States on the other hand are subject to these constraints and it is highly unlikely they will raise the bar in any future negotiation efforts to address the 'unmentionable gaps' in IEL. In fact, States might never even have the chance to embark on such fundamental reforms, since the gap report itself might avoid mentioning the 'unmentionable gaps' in IEL and might avoid recommending that they be addressed by the international community. In other words, the report itself risks creating a 'chilling' effect, premised on a negative cyclical assumption that what States do not want to hear, they should not in any case receive. If this is the case, the gap report will be a disappointment to those who, like us, appreciate the critical need for starting to develop a more radical *Lex Anthropocenae*.

5 | CONCLUSION

In this article, we have endeavoured to reflect on the issue of gaps in IEL, an inquiry that we have situated within the context of the draft Global Pact and the UNGA-mandated gap analysis that has been initiated. Generally speaking, we believe an analysis of the strengths and weaknesses of IEL should be welcomed to the extent that it might provide a foundation to pursue reforms of IEL; reforms which we are of the view are critically needed in the Anthropocene. We are not entirely convinced, however, that an analysis of gaps in the form and fashion proposed by the UNGA Resolution is the most effective or useful way to go about this.

We agree with Bodansky that what he calls 'descriptive gaps' will be difficult to assess. Descriptive gaps – not altogether dissimilar from our technical and factual characterization of gaps – are simply 'discontinuity[ies]'; they are *non liquets* which exist 'if at all, only in very rare cases where the law does not decide an issue one way or the other – where an action is neither permitted nor prohibited'.⁵⁵ On the other hand, the identification and assessment of normative gaps (what

⁵¹See, e.g., C Cullinan, *Wild Law* (2nd edn, Green Books 2011); P Burdon, *Earth Jurisprudence: Private Property and the Environment* (Routledge 2015); V Shiva, *Earth Democracy: Justice, Suitability and Peace* (North Atlantic Books 2015); F Biermann, *Earth System Governance: World Politics in the Anthropocene* (MIT Press 2014).

⁵²Kotzé and French (n 2); L Kotzé, 'A Global Environmental Constitution for the Anthropocene?' (2019 fc) *Transnational Environmental Law*.

⁵³See <<http://pactenvironment.org/>>.

⁵⁴For a brief account, see J Suiter, 'Post-truth Politics' (2016) *Political Insight* 25.

⁵⁵'Global Perspectives on a Global Pact for the Environment' (n 43).

Bodansky calls 'prescriptive gaps'⁵⁶) is an equally difficult process, since it is inherently subjective and depends on whatever norms States believe should exist. If we accept that current MEAs are concrete evidence and manifestations of States' normative ambitions, it is clear that States have been decidedly unambitious in what they believe *should* exist as global environmental protection norms. To be sure, the general view is that '[t]he current system of international environmental law and governance, with its maze of MEAs, is considered to be unsuitable for navigating the Anthropocene.'⁵⁷ It will arguably require considerable innovation, normative ambition and regulatory interventions to address this challenge. Will the gap report, as an important potential initiator of such a reform process, mention the 'unmentionable gaps'? And even if it does, will this be a sufficiently convincing foundation for States to initiate the type of global juridical reforms that are required to start shaping *Lex Anthropocenae*? We remain sceptical and are concerned that the gap report will indeed be suitable reading to be left around the home for all (States) to read – precisely because it says very little that is radical and shocking, new or groundbreaking.

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⁵⁶ibid.

⁵⁷R Kim and K Bosselmann, 'International Environmental Law in the Anthropocene: Towards a Purposive System of Multilateral Environmental Agreements' (2013) 2 *Transnational Environmental Law* 285, 286.